MASTER SERVICES AGREEMENT

This Master Services Agreement ("Agreement") is entered into as of **January 15, 2025** ("Effective Date"), by and between **Apex Global Technologies Inc.**, a Delaware corporation having its principal place of business at 100 Enterprise Way, Wilmington, DE 19801 ("Client"), and **Vertex AI Solutions LLC**, a New York limited liability company having its principal place of business at 500 Innovation Ave, New York, NY 10001 ("Provider").

SECTION 1: SCOPE OF SERVICES

Provider agrees to perform enterprise software development, data pipeline engineering, and machine learning infrastructure management services as specified in Statements of Work ("SOW") executed under this Agreement. This Agreement shall expire on **January 15, 2027**, unless terminated earlier in accordance with Section 3.

SECTION 2: CONFIDENTIALITY AND OBLIGATIONS

Each Party acknowledges that during the Term, it may receive confidential or proprietary information of the other Party ("Confidential Information"). The receiving Party shall protect such information with the same degree of care it uses for its own confidential materials, but no less than reasonable care. Confidential Information shall not include information that is publicly known through no fault of the receiving Party.

SECTION 3: TERMINATION AND DEPENDENCIES

Either Party may terminate this Agreement without cause upon **30 days written notice** to the other Party. In the event of a material breach of Section 2 (Confidentiality) or Section 4 (Indemnification), the non-breaching Party may terminate this Agreement immediately. Termination under Section 3 triggers immediate data destruction obligations under Section 2.

SECTION 4: INDEMNIFICATION AND LIMITATION OF LIABILITY

Provider agrees to defend, indemnify, and hold harmless Client against any third-party claims, losses, or damages arising out of Provider's gross negligence, willful misconduct, or infringement of intellectual property. Except for breaches of Section 2 (Confidentiality), NEITHER PARTY SHALL BE LIABLE TO THE OTHER FOR SPECIAL, INDIRECT, OR CONSEQUENTIAL DAMAGES. Section 4 liability caps explicitly CONFLICT WITH general liability remedies outlined in Section 1.

SECTION 5: GOVERNING LAW AND JURISDICTION

This Agreement shall be governed by, construed, and enforced in accordance with the laws of the **State of New York**, without giving effect to any conflict of laws principles. Any legal suit or

proceeding shall be brought exclusively in the state or federal courts located in New York County, New York.

IN WITNESS WHEREOF, the Parties have executed this Master Services Agreement as of the Effective Date.

APEX GLOBAL TECHNOLOGIES INC. **VERTEX AI SOLUTIONS LLC**
By: _____ By: _____
Name: John Doe Name: Jane Smith
Title: Chief Executive Officer Title: Managing Director